

PATIENT CONSENT, TERMS OF SERVICE & RELEASE

SleepCheckNow / Home Sleep Health

Please read this agreement carefully before completing your purchase. This agreement applies to home sleep testing, telehealth consultation services, and products or equipment purchased through SleepCheckNow. Certain sections apply only to the specific service or product you purchase.

By checking the acknowledgment box, typing your name as your electronic signature, and completing your purchase, you acknowledge that you have read, understood, and agreed to the terms below.

1. General Consent

I voluntarily request and consent to the products and/or services I have selected from SleepCheckNow. I understand that the services offered through SleepCheckNow are intended to assist with the evaluation and management of sleep-related concerns and are not a substitute for emergency medical care.

I certify that the information I provide in connection with my order, health questionnaire, consultation, or testing is accurate and complete to the best of my knowledge. I understand that incomplete or inaccurate information may affect the appropriateness or accuracy of services provided.

2. Home Sleep Testing

If I purchase a home sleep test, I understand and agree that:

- A home sleep test is a diagnostic tool used to collect physiologic information during sleep and may be used to evaluate certain sleep disorders, including obstructive sleep apnea.
- Home sleep testing has limitations and may not identify every sleep disorder or medical condition.
- I am responsible for following the instructions provided for use of the testing equipment.
- Improper placement or use of the equipment, insufficient recording time, equipment malfunction, or other factors may result in incomplete or inconclusive data and could require repeat testing.
- The results of my test must be interpreted in the context of my medical history, symptoms, and other relevant clinical information.
- A negative or inconclusive home sleep test does not necessarily rule out a sleep disorder. Additional testing, including an attended sleep study, may be recommended.
- I should discuss my results and any recommended treatment with an appropriately licensed healthcare professional.

I understand that no particular diagnosis, outcome, or treatment result can be guaranteed.

3. Telehealth Services

If I purchase or participate in a telehealth consultation, I consent to receiving healthcare services through electronic communications technology.

I understand that telehealth has potential benefits, including convenient access to healthcare, but also has limitations and potential risks. These may include technological failures, interruptions, limitations on the healthcare professional's ability to perform a physical examination, and potential privacy or security risks associated with electronic communications.

I understand that the healthcare professional may determine that telehealth is not appropriate for my circumstances and may recommend in-person evaluation or additional testing.

I understand that I may ask questions about the telehealth service and may withdraw my consent to receive services through telehealth at any time, subject to services that have already been provided and any applicable cancellation or refund policies.

Telehealth services are not intended for medical emergencies. If I believe I am experiencing a medical emergency, I understand that I should call 911 or seek immediate emergency medical attention.

4. Equipment and Product Purchases

If I purchase equipment or another product through SleepCheckNow, I understand and agree that:

- I am responsible for using the product according to the manufacturer's instructions and any instructions provided by my healthcare professional.
- I will not use equipment in a manner inconsistent with its intended purpose.
- Individual results from medical or sleep-related equipment may vary, and SleepCheckNow does not guarantee a particular therapeutic or medical result from any product.
- Product warranties, when applicable, may be provided by the manufacturer and are subject to the manufacturer's warranty terms.
- Returns, exchanges, cancellations, and refunds are subject to SleepCheckNow's applicable return and refund policies.

I understand that purchasing a medical or sleep-related product does not by itself establish that the product is medically appropriate for me. When appropriate, I should consult a qualified healthcare professional regarding use of the product.

5. Risks and Limitations

I understand that healthcare testing, telehealth services, and medical equipment have inherent limitations and potential risks. While reasonable efforts are made to provide appropriate services and properly functioning equipment, no test, consultation, device, or treatment can guarantee a particular diagnosis or outcome.

I understand that I should contact an appropriate healthcare professional if my symptoms persist, worsen, or cause concern, regardless of the results of a home sleep test or telehealth consultation.

6. Payment and Insurance

I understand that SleepCheckNow is providing the products and/or services I purchase on a self-pay basis unless expressly stated otherwise.

I accept responsibility for all charges associated with my purchase. I understand that SleepCheckNow does not guarantee that my health insurance company, employer, health savings account, flexible spending account, or other third party will reimburse me for any amount I pay.

If documentation is provided for possible reimbursement, I understand that reimbursement decisions are made by the applicable third party and are outside SleepCheckNow's control.

7. Cancellation, Refund and Return Policies

I understand that my purchase is subject to the cancellation, refund, shipping, and return policies presented on the SleepCheckNow website.

Certain healthcare services, tests, opened medical products, used equipment, or services that have already been performed may not be eligible for return or refund as permitted by applicable law.

8. Release and Limitation of Responsibility

I acknowledge that I am responsible for following all instructions associated with testing, equipment, and products provided to me and for providing accurate information to healthcare professionals involved in my care.

To the extent permitted by applicable law, I agree that SleepCheckNow, Home Sleep Health, and their respective employees, contractors, healthcare professionals, agents, and affiliates will not be responsible for injuries, losses, or damages resulting from my misuse of equipment, failure to follow provided instructions, provision of materially inaccurate or incomplete information, or use of a product in a manner inconsistent with its intended use.

Nothing in this agreement is intended to waive rights or remedies that cannot legally be waived, or to release any person or entity from liability that cannot legally be limited or released.

9. Privacy and Electronic Communications

I understand that information I provide in connection with healthcare services may include personal and health information. SleepCheckNow will handle health information in accordance with applicable privacy laws and its applicable privacy practices.

I consent to receiving communications related to my purchase and services electronically, including order confirmations, testing instructions, appointment information, test-related communications, receipts, and other necessary service communications at the email address and/or telephone number I provide.

10. Electronic Signature and Acknowledgment

By checking the acknowledgment box and typing my full legal name below, I acknowledge that:

- I have had the opportunity to read this Patient Consent, Terms of Service & Release before completing my purchase.
- I understand the provisions that apply to the products or services I am purchasing.
- I have had the opportunity to ask questions when applicable.
- I voluntarily consent to the applicable testing and/or telehealth services.
- I agree to the applicable terms associated with products or equipment I purchase.
- I intend my typed name to constitute my electronic signature and to have the same force and effect as my handwritten signature.

Patient/Customer Full Legal Name: _____

Electronic Signature: _____

Date: _____

Order/Transaction Number: _____